

Surbeer Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 December 2009 · Writ-C No. 66022 of 2009 · **Interim stay of recovery; writ later dismissed in default**

HEADNOTE

On Regulation 17 of the Electricity Supply Consumer Regulations, 1984 read with clauses 4.37 and 4.38 of the U.P. Electricity Supply Code, 2005, the Division Bench stayed recovery under a citation dated 11.11.2009, observing that minimum charges after disconnection could be taken for at most seven or eight months. Supply had been temporarily disconnected on 1.4.1988 and permanently disconnected on 22.12.1996. The writ was later dismissed in default on 10.4.2019 when none appeared to press it.

FACTUAL SUMMARY

Surbeer Singh's supply was temporarily disconnected on 1.4.1988 for non-payment and permanently disconnected on 22.12.1996. In 2009 he challenged recovery on a citation dated 11.11.2009. The Division Bench stayed that recovery pending the writ, noting that Regulation 17 of the 1984 Regulations read with clauses 4.37 and 4.38 of the 2005 Code capped minimum charges at seven or eight months. After admission in 2010, none appeared in 2019 and the petition was dismissed in default.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.37

minimum charges after disconnection

HOLDING

Read with Regulation 17 of the Electricity Supply Consumer Regulations, 1984, clauses 4.37 and 4.38 of the U.P. Electricity Supply Code, 2005 were treated as limiting the period for which minimum charges may be recovered after disconnection to seven or eight months, and recovery on the 11.11.2009 citation was stayed on that interlocutory footing. The writ was later dismissed in default without a merits determination. ¶ 1

FLAG Court cites 4.37 and 4.38 together with 1984 Regulation 17 for a seven-or-eight-month cap without isolating which clause supplies that period.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 11.11.2009 RECOVERY OF MINIMUM CHARGES BEYOND SEVEN OR EIGHT MONTHS AFTER THE 1988/1996 DISCONNECTIONS WAS LAWFUL

The 4.12.2009 stay was interlocutory; dismissal in default on 10.4.2019 left the dues adjudicated. ¶ 1

Harihar Cold Storage v. P.V.V.N.L. & Another

Allahabad High Court · Single Judge · 22 December 2011 · WRIT - C No. 24309 of 2007 · **Writ petition disposed of (minimum-guarantee charges held not recoverable; rural-rate billing directed; set-off refused)**

HEADNOTE

Where a consumer has not committed to pay a fixed sum as minimum-guarantee charges, the licensee can recover such charges only if it ensures the minimum guaranteed supply; if the supply fails for a reason attributable to the licensee (here, a burnt transformer left unrepaired for about five months), no minimum-guarantee charges can be levied (*Raymond Ltd. v. M.P. Electricity Board*). Clause 4.37 of the U.P. Electricity Supply Code, 2005 (minimum-charge billing on temporary disconnection) applies only where the disconnection is due to the consumer's default, not the licensee's; and Clause 7.07 requires restoration within 24 hours / transformer replacement within 15 days. Supply given from a rural feeder cannot be billed at the urban-feeder rate; and a consumer who repairs the transformer himself, without authorisation, cannot set off the cost against his bills (remedy: civil suit).

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.37

Minimum-guarantee charges on temporary disconnection — only for consumer's default

QUESTION

Can minimum-guarantee charges be levied under Clause 4.37 for a period when supply was disconnected because of the licensee's own failure to repair the transformer?

HOLDING

No. Clause 4.37 permits minimum-charge billing on a temporary disconnection only where the disconnection is on account of the consumer's default; here the disconnection was due to a burnt transformer the licensee failed to repair for about five months (breaching Clause 7.07's 24-hour restoration / 15-day replacement norms), so no minimum-guarantee charges lie. Where no fixed minimum sum is committed, minimum-guarantee charges require the licensee to ensure the minimum guaranteed supply. ¶ [the Clause 4.37 / minimum-guarantee discussion \(unnumbered order\)](#)

LIMITING FACTS

Supply remained disconnected 7.1.2006-28.5.2006 due to a burnt transformer; the consumer's bills had in fact been paid in cash (the dishonoured-cheque premise was not denied).

HOLDING-UNIT · UP-2005::tariff-feeder

Rural-feeder supply cannot be billed at urban rate; no self-help set-off

HOLDING

Supply made from a rural feeder cannot be billed at the urban-feeder rate schedule (conceded); the excess is refundable. A consumer who, without authorisation, gets the transformer repaired at his own cost cannot set off that cost against his bills — the remedy is a civil suit. ¶ [unnumbered order](#)

PRINCIPLE TAGS

no-charge-when-supply-fails-by-licensee-fault

Minimum-guarantee (and like) charges cannot be levied for a period in which supply failed for a reason attributable to the licensee; the obligation to pay is tied to the licensee's maintaining the minimum standard of supply. Lead authorities: *Raymond Ltd. v. M.P. Electricity Board* [1865062]. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MINIMUM-GUARANTEE CHARGES FOR 20.11.2004-8.5.2005

That period (during which s.126 proceedings were on foot) was the subject of a separate writ petition (No. 31333 of 2006) and was not addressed here. ¶ [unnumbered order](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Raymond Ltd. & Anr. v. M.P. Electricity Board & Ors.</i> (2001) 1 SCC 534 [1865062] Supreme Court	Where the consumer has not committed to a fixed minimum-guarantee sum, the licensee can enforce minimum-guarantee charges only by ensuring the minimum guaranteed supply; if the licensee fails to supply, the consumer is exonerated from paying minimum-guarantee charges.	Applied to hold minimum-guarantee charges not recoverable where supply failed by the licensee's fault. ¶ unnumbered order	Court	Followed

SCJ-030 · Harihar Cold Storage v. P.V.V.N.L. & Another · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Satya Narayan v. U.P. Power Corporation Ltd. thru. its Managing Director & Others

Allahabad High Court (Lucknow Bench) · Division Bench · 22 May 2013 · Misc. Bench No. 9090 of 2012 · **Writ petition allowed; relief moulded — refund directed if overpaid, Corporation directed to sensitise staff on Supply Code duties**

HEADNOTE

Clause 6.15(1)(b) of the U.P. Electricity Supply Code, 2005 (mirroring s.56(2), Electricity Act, 2003) bars recovery of electricity dues after two years from when the sum first became due, unless continuously shown as recoverable arrears — this bar is not merely directory but casts a positive, ongoing obligation on the licensee: upon non-payment, it is mandatory (not optional) for the licensee to issue notice and proceed to temporary disconnection under Clause 4.36 within the two-year window; a licensee that remains silent for over a decade without sending any demand notice or taking disconnection action cannot thereafter invoke Clause 4.38(c) (permanent disconnection requiring an affidavit clearing all dues) in isolation to justify recovering a stale, undemanded debt — Supply Code provisions must be read as a whole, not piecemeal, and Clause 4.38(c) operates subject to the licensee's own Clause 4.36/6.15 obligations. Where a consumer's electricity connection is dormant and undemanded for years, the burden shifts to the licensee to justify continued recoverability; failure to explain a prolonged silence (here, ~12 years without a single notice) warrants relief moulded in the consumer's favour, including potential refund of amounts paid in excess of a properly-limited two-year recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

The Clause 6.15/s.56(2) two-year recovery bar imposes a positive obligation on the licensee to act (notice, then temporary disconnection under Clause 4.36) within that window; prolonged licensee silence (here, ~12 years with no demand notice) forfeits the right to recover, and Clause 4.38(c)'s affidavit requirement for permanent disconnection cannot be invoked in isolation to defeat this bar

QUESTION

Can a licensee recover electricity dues via a recovery citation issued ~14-15 years after the alleged dues accrued, where no demand notice was sent for over a decade and the consumer contends the connection was long disconnected/dormant?

HOLDING

No, not beyond the two-year window contemplated by Clause 6.15(1)(b)/s.56(2), absent evidence the sum was continuously shown as recoverable arrears. Reading the Supply Code as a whole (not piecemeal), Clause 4.36 casts a mandatory obligation on the licensee to issue notice and proceed with temporary disconnection upon non-payment within the statutory window; a licensee's total silence for ~12 years, without a single demand notice, forecloses reliance on Clause 4.38(c) (permanent disconnection contingent on the consumer's own affidavit clearing dues) to justify a stale recovery — that clause operates subject to, not independent of, the licensee's own Clause 4.36/6.15 obligations. The Court moulded relief: the petitioner was permitted to seek refund of any amount paid in excess of what would be recoverable for a proper two-year period, and the Corporation was directed to issue a circular/order sensitising its employees to their Supply Code duties, given the demonstrated departmental negligence. ¶ paras 9-24

LIMITING FACTS

The petitioner's shop/electricity connection (since 1984-85) was allegedly disconnected/closed in 1997-98 (disputed by the licensee, which denied receiving any disconnection application); after ~14 years of silence, a recovery citation for Rs. 86,925 was issued in 2012; the petitioner deposited Rs. 11,000 under threat of civil imprisonment and, during the writ petition, the parties compromised for an additional Rs. 2,841, but the Court proceeded to record findings on the underlying limitation/procedural issue given evident departmental negligence.

PRINCIPLE TAGS

clause-6.15-two-year-bar-mandatory-licensee-duty-to-act The Clause 6.15/s.56(2) two-year recovery bar is not passive — it obliges the licensee to actively pursue notice-and-disconnection under Clause 4.36 within that window; prolonged inaction

(here, ~12 years) forfeits recoverability, and Clause 4.38(c)'s permanent-disconnection-affidavit requirement cannot be read in isolation to override this. ¶ paras 14-22

supply-code-read-as-whole-not-piecemeal Provisions of the Supply Code must be construed together, in context, not in isolation — a specific clause (Clause 4.38(c)) cannot be relied upon divorced from the licensee's parallel obligations (Clause 4.36/6.15). Lead authorities: *Grasim Industries Ltd. v. Collector of Customs* [1723469], *Zameer Ahmed Latifur Rehman Sheikh v. State of Maharashtra* [37174]. ¶ para 18

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — PRECISE QUANTUM REFUNDABLE TO THE PETITIONER

Not finally quantified; the licensee directed to compute and consider refund of any amount paid in excess of a proper two-year recovery, per the petitioner's representation. ¶ paras 21, 23-24

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Dr. Devendra Pratap Singh & Others v. Union of India</i> 2011 (7) ADJ 169 (DB) (LB) Allahabad High Court (Lucknow Bench, DB)	Even while deciding a private dispute, the Court may have regard to the larger public interest.	Cited to justify the Court's broader observations/directions on departmental negligence beyond the immediate dispute.	Court	Followed
<i>Om Narain Sahu v. U.P. Power Corporation & Others</i> Writ Petition No. 4545 (M/B) of 2005, order dated 3.1.2013 Allahabad High Court (Lucknow Bench, DB)	Directed U.P. Power Corporation to refund dues with interest, constitute a committee for time-bound connection processes, hold disciplinary inquiry against responsible officers, with costs for departmental default/delay.	Relied on as a companion precedent (same author-Judge) directing systemic reform in response to Power Corporation administrative failures.	Petitioner	Followed
<i>Grasim Industries Ltd. v. Collector of Customs</i> 2002 (4) SCC 297 [1723469] Supreme Court	Statutory provisions must be interpreted in context, not in isolation; a construction leaving part of the statute without effect is normally rejected.	Applied among a catena of cases to support reading the Supply Code holistically.	Court	Followed
<i>Zameer Ahmed Latifur Rehman Sheikh v. State of Maharashtra</i> (2010) 5 SCC 246 [37174] Supreme Court	Same interpretive principle — statutory provisions read as a whole, not piecemeal.	Cited among the catena of authorities supporting holistic statutory construction.	Court	Followed

SCJ-113 · Satya Narayan v. U.P. Power Corporation Ltd. thru. its Managing Director & Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Smt. Rani Agrawal v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 2 January 2019 · WRIT - C No. 27905 of 2008 · **Writ disposed; representation to authority/Consumer Forum to be decided in four months, limitation not to be raised if filed in time.**

HEADNOTE

Saw mill consumers challenged DVVNL demands for minimum consumption charges for October 2006–August 2007, when supply stood disconnected under an Apex Court order. The licensee invoked clause 4.37 of the Electricity Supply Code, 2005 on the footing that the connections were only temporarily disconnected. The Court held that the controversy raised disputed questions of fact not triable in writ, and disposed of the petition directing a representation to the Appropriate Authority/Consumer Forum to be decided by a reasoned order within four months, without examining limitation if moved in time.

FACTUAL SUMMARY

The petitioners, saw mill owners, challenged Dakshinanchal Vidyut Vitran Nigam orders dated 31 December 2007 and 28 April 2008 demanding minimum consumption charges for October 2006 to August 2007. Their electricity supply had been disconnected from 23 September 2006 pursuant to an Apex Court order, and they said no energy was supplied in that period. The licensee contended that the connections were not permanently disconnected, so the temporary disconnection stood at par and clause 4.37 of the Electricity Supply Code, 2005 made minimum charges payable.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.37

minimum-charges-temporary-disconnection

HOLDING

Whether minimum charges under clause 4.37 are payable for a period of Apex Court-ordered disconnection, when the connection was not permanently disconnected and no energy was supplied, raises disputed questions of fact that cannot be decided in writ. The petitioners may move the Appropriate Authority/Consumer Forum within two weeks; that authority shall decide the representation by a reasoned speaking order within four months and, if filed in time, without examining limitation. ¶ 1

FLAG Respondent cited cl. 4.37 as the source of minimum charges on temporary (non-permanent) disconnection; the Court did not examine or apply the clause.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE MAY RECOVER MINIMUM CONSUMPTION CHARGES UNDER CLAUSE 4.37 FOR OCTOBER 2006–AUGUST 2007 WHEN SUPPLY WAS DISCONNECTED PURSUANT TO AN APEX COURT ORDER AND NO ENERGY WAS SUPPLIED.

Writ declined on disputed questions of fact; relegated to Appropriate Authority/Consumer Forum. ¶ 1

Manoj Kumar v. State of U.P. — permanent disconnection bars reconnection

High Court of Judicature at Allahabad · Single Judge · 5 March 2024 · WRIT - C No. 26503 of 2023 · **Permanent disconnection bars reconnection; new connection on deposit; writ pending**

HEADNOTE

Clause 4.39 of the U.P. Electricity Supply Code, 2005 does not permit reconnection after permanent disconnection; the consumer must apply for a new connection. An interim direction to reconnect on deposit of Rs 1,80,000 is modified to require that deposit and a fresh application, which the Executive Engineer is to process. The writ challenging the Permanent Lok Adalat order and recovery citation remains pending, with the interim stay continued.

FACTUAL SUMMARY

Manoj Kumar challenged a Permanent Lok Adalat, Aligarh order dated 19.07.2023 and a Tehsildar, Atrauli recovery citation dated 02.04.2022, alleging a wrongly calculated electricity bill, and sought an instalment scheme. On 10.08.2023 the High Court stayed both orders subject to deposit of Rs 1,80,000 and directed Dakshinanchal Vidyut Vitran Nigam Ltd. to reconnect supply if the deposit was made. He then sought modification, stating that his connection had been terminated from 19.09.2020 and permanently disconnected by office memorandum dated 28.07.2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.39(b)

reconnection after permanent disconnection

HOLDING

A permanently disconnected connection cannot be reconnected under the Supply Code; the consumer must apply for a new connection. The 10.08.2023 direction that DVVNL reconnect supply on deposit of Rs 1,80,000 is modified: if the petitioner deposits that amount within one month and applies for a new connection, the Executive Engineer, EDD-II, DVVNL, Aligarh shall take necessary steps. Modification application disposed; writ listed before the appropriate Bench and not treated as tied up; interim order continues. ¶ 3-5

FLAG order cites clause 4.39 without a sub-clause; the PD/new-connection rule is 4.39(b)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CHALLENGE TO THE PERMANENT LOK ADALAT ORDER DATED 19.07.2023, THE RECOVERY CITATION DATED 02.04.2022, AND THE CORRECTNESS OF THE ELECTRICITY BILL

Counter affidavit was directed; writ listed before the appropriate Bench with interim stay continued. ¶ 1

Harish Agrawal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 August 2024 · 2024:AHC:135084-DB · WRIT - C No. 23748 of 2024
· **Writ dismissed; occupier reconnection on indemnity upheld.**

HEADNOTE

Regulation 4.39(b) of the U.P. Electricity Supply Code, 2005 is an enabling clause for the person whose supply was temporarily disconnected, not a bar on the licensee restoring supply by another mechanism if it is protected as to bills. Restoration to an occupier on an Annexure 4.2 indemnity bond, despite the owner's complaint and a pending partition suit without injunction, is not illegal.

FACTUAL SUMMARY

The petitioner and his son were locked in a pending partition suit in which no injunction had been passed against the son. The son, occupying a portion of the premises and running a restaurant there, obtained an electricity connection from the licensee. On the petitioner's complaint that his permission had not been taken, the connection was temporarily disconnected. The son then furnished an indemnity bond and the licensee restored supply. The petitioner challenged that restoration under Article 226.

REUSABLE CONSTRUCTIONS

1. Regulation 4.39(b) is an enabling clause for the person whose supply was temporarily disconnected, not a bar on the licensee restoring supply by another mechanism if it is protected as to bills. ¶ 6-7
2. There is no illegality in restoring supply to an occupier of a portion of the premises on an Annexure 4.2 indemnity bond, even if the owner complains and a partition suit is pending without injunction. ¶ 8

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.39(b)

reconnection after temporary disconnection

HOLDING

Regulation 4.39(b), which provides that supply shall be reconnected after the cause of disconnection has been removed, is an enabling clause for the benefit of the person whose supply was temporarily disconnected. It does not bar the licensee from restoring supply by another mechanism if the licensee is protected in relation to payment of the bills. ¶ 6-7

HOLDING-UNIT · UP-2005::Annexure 4.2

occupier indemnity bond

HOLDING

Where the licensee has accepted an indemnity bond from the occupier of a portion of the premises and restored supply, there is no illegality and no impediment to granting connection to a person in occupation on an Annexure 4.2 indemnity bond. ¶ 8

FLAG Para 8 cites the Supply Code as 2006; the Code is 2005.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — TITLE AS BETWEEN THE PETITIONER AND HIS SON

A partition suit was pending and no injunction bound the son; the Court did not adjudicate ownership. ¶ 3

Satish Kumar @ Yatish Sharma v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 3 September 2024 · 2024:AHC:142296-DB · Writ - C No. 22231 of 2024 · **Writ disposed of by consent; OTS sum of Rs. 1,52,261 in six monthly installments; default lapses the order; fresh connection application after dues, in accordance with law**

HEADNOTE

Where a consumer of an unmetered tubewell connection alleged that supply had been disconnected in April 2016 and challenged later bills, but conceded he had no evidence of that disconnection, and the licensee showed a temporary disconnection only in September 2022 with billing confined to the following six months on the footing of deemed permanent disconnection, the writ court recorded the licensee's admission that under the U.P. Electricity Supply Code, 2005 consecutive default in payment requires temporary disconnection followed by permanent disconnection within six months. It did not quash the dues. By consent the petition was disposed of directing payment of the One-Time Settlement figure of Rs. 1,52,261 (surcharge waived) in six equal monthly installments, the first due on 30 September 2024; default would lapse the order and leave the department free to proceed in accordance with law. If the entire dues were cleared, the petitioner could apply afresh for a connection, to be considered in accordance with law. The Court numbered no Code clause and did not decide whether electricity was consumed after April 2016.

FACTUAL SUMMARY

Satish Kumar @ Yatish Sharma held an unmetered tubewell connection billed at a fixed, periodically revised amount. He sought a mandamus to decide his representation of 19 January 2024 and reminder of 6 March 2024, and to resolve electricity bills from April 2016 or disconnect the tubewell. His case was that the Electricity Department had disconnected supply in April 2016 and that he had not consumed electricity since, yet bills continued.

Abhinav Tiwari, Executive Engineer, Electricity Distribution Division-II, Hathras, produced records. Counsel for the department submitted that there was no evidence of a 2016 disconnection; temporary disconnection was in September 2022, after which the petitioner was billed only for six months because of deemed permanent disconnection. Outstanding dues were Rs. 1,52,261 plus surcharge of Rs. 99,723.82 (total Rs. 2,51,984.82); under the One-Time Settlement scheme (to be availed by 16 August 2024) the payable sum was Rs. 1,52,261. Petitioner's counsel conceded he had no evidence of the 2016 disconnection and offered to pay that figure if given time. The department agreed to six monthly installments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

Consecutive default requires TDC then PDC within six months; post-TDC billing is limited to that period; 2016-disconnection claim not proved

QUESTION

Where the consumer alleges a 2016 disconnection and later bills, but cannot prove it, and the licensee shows TDC only in September 2022 with six months' billing for deemed PDC, will the writ court quash the later dues?

HOLDING

No. Licensee's counsel admitted that under the 2005 Code the licensee ought to carry out temporary disconnection on consecutive default in payment, followed by permanent disconnection within six months. On the records, TDC was in September 2022 and billing was only for the subsequent six months because of deemed PDC. The petitioner conceded he had no evidence of a 2016 disconnection. Outstanding dues of Rs. 1,52,261 plus surcharge Rs. 99,723.82 were reduced under OTS to Rs. 1,52,261. By consent the petitioner is to pay that sum in six equal monthly installments, the first due on 30 September 2024 and the rest by the end of each succeeding month; default lapses the order and the department may proceed in accordance with law.

QUALIFIER

Consent of counsel; default lapses the order.

FLAG The Court did not number the clause. Listing orders of 1.8.2024 and 14.8.2024 recorded the licensee's admission of the TDC-then-PDC-within-six-months duty; the 3.9.2024 order applies that admission to the September 2022 TDC and six-month billing. Keyed to Clauses 4.37/4.38 as the pattern that matches; Clause 4.36 (TDC for non-payment) is not a catalog key.

HOLDING-UNIT · UP-2005::procedure-for-restoration

After deemed PDC, reconnection is by a fresh application considered in accordance with law, not by restoring the old connection

HOLDING

If the entire dues are cleared, it is open to the petitioner to apply afresh for an electricity connection; any such application is to be considered in accordance with law. The Court did not restore the disconnected tubewell.

¶ 8

PRINCIPLE TAGS

clause-4.37-4.38-licensee-empowered-to-permanently-disconnect Counsel admitted, and the Court recorded, that consecutive default in payment requires temporary disconnection followed by permanent disconnection within six months; the licensee billed only six months after the September 2022 TDC on the footing of deemed PDC. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SUPPLY WAS DISCONNECTED IN APRIL 2016 AND WHETHER THE PETITIONER CONSUMED ELECTRICITY THEREAFTER

The petitioner conceded he had no evidence of a 2016 disconnection; the Court did not independently find consumption or non-consumption after that date. ¶ 5

NOT DECIDED — WHETHER THE CALCULATION SHEET WAS ASSUMPTIVE FOR WANT OF METER READINGS AFTER APRIL 2016

Raised on 14.8.2024 when instructions showed no meter reading; overtaken by the concession and consent settlement.

¶ 4

Sagufta Ishrar v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 9 April 2025 · 2025:AHC:52030-DB · Writ-C No. 10364 of 2025 · **Writ disposed of; permanent disconnection after inspection and dues.**

HEADNOTE

Mandamus to finalize permanent disconnection under clause 4.38 of the U.P. Electricity Supply Code, 2005 — licensee directed to inspect the meter at the consumer's residence, intimate pending dues, and permanently disconnect the supply on payment within three weeks.

FACTUAL SUMMARY

The petitioner sought a mandamus directing Purvanchal Vidyut Vitran Nigam Ltd. to finalize permanent disconnection of her electricity supply from the date of temporary disconnection, invoking clause 4.38 of the U.P. Electricity Supply Code, 2005. Counsel for the respondents submitted that the consumer had to be present on site for the bill to be finalized, and that none had appeared on her behalf on the previous date fixed for that purpose.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

permanent disconnection

HOLDING

On a consumer's prayer to finalize permanent disconnection under clause 4.38 of the U.P. Electricity Supply Code, 2005, the High Court directed the licensee to inspect the meter at the consumer's residence in her presence, intimate pending dues, and, upon payment within three weeks of knowledge of those dues, permanently disconnect the electricity line. ¶ 4

PRINCIPLE TAGS

clause-4.37-4.38-licensee-empowered-to-permanently-disconnect

The Court gave effect to the consumer's request for permanent disconnection under clause 4.38 by directing the licensee to disconnect the line after on-site meter inspection and payment of pending dues. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.38 ENTITLES THE CONSUMER TO PERMANENT DISCONNECTION WITH EFFECT FROM THE DATE OF TEMPORARY DISCONNECTION

The mandamus prayed for that dating benefit; the Court directed prospective disconnection after inspection and payment without deciding the dating question. ¶ 2,4

Satya Prakash Katara v. Junior Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Single Judge · 8 July 2025 · 2025:AHC:107596 · Writ - C No. 18215 of 2025 · **Writ disposed of without interfering with the PLA order; reconnection on Rs 40,000 deposit and three monthly instalments.**

HEADNOTE

Without interfering with a Permanent Lok Adalat order directing reconnection after deposit of admitted arrears, the High Court disposed of the writ by directing the DISCOM to reconnect on deposit of Rs 40,000 within one month, with the balance in three monthly instalments, having regard to the instalment facility under clause 6.14 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner challenged a Permanent Lok Adalat, Mathura order dated 15 February 2025 which had partly allowed his claim and directed reconnection after deposit of admitted dues of Rs 1,10,224. The DISCOM showed Rs 1,07,838 outstanding as of 14 May 2024. The petitioner then confined his prayer to easy instalments, citing clause 6.15 of the U.P. Electricity Supply Code, 2005. The DISCOM relied on clauses 4.39 (reconnection) and 6.14 (instalment facility).

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for reconnection

HOLDING

Without interfering with the Permanent Lok Adalat order, the Court directed the DISCOM to provide a new electricity connection and reconnect supply if the petitioner deposits Rs 40,000 within one month, with the remaining arrears in three easy monthly instalments, having regard to clause 6.14 (no officer below Executive Engineer may grant instalments; EE/DGM/GM may grant up to two, three or four monthly instalments respectively; first instalment not less than 40%). ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ARREARS WERE IRRECOVERABLE AND DISCONNECTION BARRED UNDER CLAUSE 6.15 AFTER TWO YEARS

The petitioner invoked clause 6.15; the Court disposed of the writ on instalments under clause 6.14 without deciding the two-year bar. ¶ 4,7

NOT DECIDED — MERITS OF THE CHALLENGE TO THE PERMANENT LOK ADALAT ORDER DATED 15 FEBRUARY 2025

The Court expressly declined to interfere with the PLA order. ¶ 7

Petitioner v. Purvanchal Vidyut Vitran Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench · 7 November 2025 · WRIT - C No. 38566 of 2025 · **Writ disposed; EE to decide cl. 4.38 PD representation.**

HEADNOTE

Consumer whose 3 kW supply was temporarily disconnected and whose meter was removed while billing continued sought mandamus for permanent disconnection from the date of temporary disconnection under Clause 4.38(i)(b) of the U.P. Electricity Supply Code, 2005. The Division Bench did not decide that duty and disposed of the writ, permitting a representation to the Executive Engineer to be considered and decided by a reasoned speaking order after notice and hearing, preferably within one month.

FACTUAL SUMMARY

The petitioner obtained a 3 kW connection (No. 3371798735) from the Executive Engineer, EDD-1, PuVVNL, Allahabad on 17 January 2024 and paid the first bill of Rs.881 on 19 March 2024. In April 2024 the supply was temporarily disconnected without reasons and the meter was removed, but billing continued, leaving Rs.20,503.37 outstanding as on 25 October 2025. The petitioner sought mandamus for permanent disconnection from the date of temporary disconnection under Clause 4.38(i)(b) of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

permanent disconnection after temporary disconnection

HOLDING

On a prayer for mandamus directing permanent disconnection from the date of temporary disconnection under Clause 4.38(i)(b), the Court did not decide whether the licensee is bound to permanently disconnect after six months of temporary disconnection. It disposed of the writ by permitting the petitioner to make a representation to the Executive Engineer, EDD-1, PuVVNL, Allahabad, who shall consider and decide it by a reasoned speaking order after notice and hearing, preferably within one month. ¶ 5

PRINCIPLE TAGS

clause-4.37-4.38-licensee-empowered-to-permanently-disconnect The petitioner invoked Clause 4.38(i)(b) as obliging the licensee to convert a six-month-old temporary disconnection into a permanent disconnection; the Court remitted that claim to the Executive Engineer without deciding the duty. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.38(I)(B) OBLIGES THE LICENSEE TO PERMANENTLY DISCONNECT AFTER SIX MONTHS OF TEMPORARY DISCONNECTION, AND WHETHER BILLING MAY CONTINUE AFTER METER REMOVAL

¶ 4-5

Parvati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Another

Allahabad High Court · Division Bench · 8 April 2026 · Writ - C No. 11370 of 2026 · **Writ petition dismissed; the Court refused to examine the surcharge / billed-amount dispute after the petitioner declined to deposit the bill-minus-surcharge as directed, and refused to compel a permanent disconnection**

HEADNOTE

A consumer who had obtained a revised bill (20.02.2026) after a prior writ, still disputed late-payment surcharge of Rs. 2,24,241.30 on that bill and sought a single bill from inception (final reading 4468 kWh) with no fixed charges after temporary disconnection and no surcharge, invoking Clauses 4.37(a), 4.38 and 6.5(b)(i) of the U.P. Electricity Supply Code, 2005. The Court had required her to deposit Rs. 1,44,253 (the billed amount less surcharge) as a precondition to examining the surcharge, and the licensee to disclose particulars of a 21.03.2025 disconnection memo. She refused to deposit, saying Clauses 4.37/4.38 mandated permanent disconnection so she need not pay the difference. The writ court would not be drawn into a billed-amount dispute on that footing, and dismissed the petition. Clauses 4.37 and 4.38 empower the licensee to permanently disconnect a line that has remained temporarily disconnected without the cause being removed; whether the consumer can compel the licensee to do that is not a question for a writ in which the bill itself is disputed. The Clause 6.5(b)(i) contention (no LPS when a revised bill follows a complaint found correct) was not decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.37

Clauses 4.37 and 4.38 empower the licensee to permanently disconnect after six months of unremedied temporary disconnection; a consumer who disputes the bill cannot compel that step in writ

QUESTION

Can a consumer who disputes a revised bill (including late-payment surcharge after temporary disconnection) compel the licensee, under Clauses 4.37(a) and 4.38, to permanently disconnect and to recast the account from inception without fixed charges or surcharge?

HOLDING

The licensee is empowered by Clauses 4.37 and 4.38 to permanently disconnect a line that was temporarily disconnected, where the cause has not been removed (Clause 4.37(a): minimum-charge billing after TD, Annexure 4.9 notice, permanent disconnection after six months, then dormant connection and a final account; Clause 4.38(b): PD if the cause is not removed within six months). Whether the consumer can compel the licensee to exercise that power is not a question for consideration in a writ petition in which the bill itself is disputed. The petition, which sought a recast bill from inception without fixed charges after TD and without surcharge, and quashing of the 20.02.2026 bill, was dismissed. ¶ 1, 4-7

LIMITING FACTS

Temporary disconnection memo 21.03.2025 demanding Rs. 4,23,419; consumer complained; revised bill 20.02.2026 for Rs. 3,68,494 including LPS of Rs. 2,24,241.30; earlier coordinate-Bench order in Writ-C No. 43924 of 2025 had led to that revised bill. Petitioner Parvati Devi; PuVVNL. She refused the Court's direction to deposit Rs. 1,44,253 (bill less surcharge) as a precondition to examining the surcharge.

HOLDING-UNIT · UP-2005::6.5(b)

Writ court will not examine an LPS challenge on a revised bill if the consumer refuses to deposit the undisputed billed amount

QUESTION

Where a revised bill still includes late-payment surcharge, and the consumer invokes Clause 6.5(b)(i) (no LPS when the complaint is found correct), will the writ court quash the surcharge without deposit of the rest of the bill?

HOLDING

The Court did not decide Clause 6.5(b)(i). It had narrowed the controversy to the surcharge of Rs. 2,24,241.30 and directed deposit of the difference (Rs. 1,44,253) as a precondition to looking into the surcharge, with the licensee to disclose particulars of the 21.03.2025 disconnection memo. The petitioner refused to deposit, recasting the case as a demand for permanent disconnection. The Court would not be drawn into a dispute on the billed amount and dismissed the writ. ¶ 2-3, 5-7

FLAG Clause 6.5(b)(i) is indexed because it was the consumer's surcharge ground; this order is not a construction of that sub-clause.

PRINCIPLE TAGS

writ-will-not-adjudicate-bill-if-undisputed-part-unpaid A surcharge / Clause 6.5(b)(i) grievance will not be examined in writ if the consumer refuses to deposit the billed amount less the disputed surcharge, as previously directed. ¶ 5-7

clause-4.37-4.38-licensee-empowered-to-permanently-disconnect After temporary disconnection, Clauses 4.37(a) and 4.38 empower the licensee to move to permanent disconnection if the cause is not removed within six months; that power is the licensee's, and a bill-disputing consumer cannot compel its exercise in writ. ¶ 4, 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.5(B)(I) BARS LATE-PAYMENT SURCHARGE ON THE REVISED BILL OF 20.02.2026

Raised; not decided. The Court dismissed for refusal to deposit the bill-minus-surcharge and would not examine the billed amount. ¶ 2-3, 6-7

NOT DECIDED — WHETHER THE CONSUMER CAN COMPEL PERMANENT DISCONNECTION UNDER CLAUSES 4.37/4.38

Expressly not considered, because the bill itself was in dispute. ¶ 6

NOT DECIDED — CORRECTNESS OF THE DISCONNECTION MEMO OF 21.03.2025 AND OF THE REVISED DEMAND OF RS. 3,68,494

Not reached. ¶ 6-7

Bipin Kumar Tripathi v. Purvanchal Vidyut Vitran Nigam Limited & Another

Allahabad High Court · Division Bench · 14 May 2026 · Writ - C No. 19953 of 2024 · **Writ disposed of; deposit Rs. 50,000 of Rs. 1,19,850 by 30.05.2026; no-dues certificate after deposit; special case, not a precedent**

HEADNOTE

Where a consumer challenges a bill-cum-notice and a representation-rejection order on the footing that the licensee was bound under Clauses 4.36 and 4.38 of the U.P. Electricity Supply Code, 2005 to disconnect after unpaid bills from 2016, and that s.56 of the Electricity Act, 2003 barred recovery of sums more than two years old, the writ court does not decide those grounds. On the consumer offering to pay under a one-time settlement and the licensee stating that 50% of the dues could be waived, the Court, taking a sympathetic view as a special case because the consumer's father had died in 2018 and the premises were unoccupied, directed deposit of Rs. 50,000 out of outstanding bills of Rs. 1,19,850 on or before 30 May 2026. After that deposit the licensee is to settle the excess, pass an order within two weeks, and issue a no-dues certificate. The direction is a special case and is not a binding precedent.

FACTUAL SUMMARY

Bipin Kumar Tripathi petitioned the Allahabad High Court against Purvanchal Vidyut Vitran Nigam Limited challenging an order dated 2 April 2024 and a bill-cum-notice dated 18 March 2023 for alleged electricity dues on a connection standing in his late father's name. He said his father had applied in 2016 to cancel the connection after clearing dues, that the father died in 2018, that nobody thereafter resided in the house, and that the department had failed under the U.P. Electricity Supply Code, 2005 to disconnect the supply or remove the meter. An earlier writ (Writ-C No. 2771 of 2024) had been disposed of on 12 February 2024 directing a representation; he made one on 28 February 2024, which was rejected.

The licensee denied any disconnection application, said a raid found the connection and meter intact, and billed from October 2016 to 7 April 2024. Outstanding bills stood at Rs. 1,19,850. At the hearing the petitioner, a senior advocate, offered to pay some amount if given a one-time settlement; the department said 50% of the amount could be waived.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

Special sympathetic reduction of arrears with no-dues certificate; not a construction of Clauses 4.36/4.38 or s.56

QUESTION

Where the consumer alleges a 2016 cancellation request and licensee failure to disconnect under Clauses 4.36 and 4.38, and invokes s.56, will the writ court quash later bills, or may it dispose of the dues challenge by a reduced lump-sum deposit as a special case?

HOLDING

The Court did not decide the disconnection-duty or s.56 grounds. On the petitioner offering to pay some amount under a one-time settlement and the licensee stating that 50% could be waived, it directed deposit of Rs. 50,000 of outstanding bills of Rs. 1,19,850 on or before 30.05.2026. After deposit the concerned officer is to pass an order within two weeks, settle the excess after accepting Rs. 50,000 as a genuine amount, and issue a no-dues certificate. The Court took a sympathetic view because the father had died in 2018 and the premises were not in occupation; if anyone used electricity without authorisation, the petitioner should not in this case be saddled with the entire dues. ¶ 6-8

QUALIFIER

Special case; shall not be a binding precedent.

FLAG Petitioner cited Clauses 4.36 and 4.38 (order dated 6.6.2024) and s.56 of the Electricity Act, 2003. Clause 4.36 is not a catalog key (catalog has 4.37 and 4.38). The operative order of 14.05.2026 cites no clause number.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FATHER APPLIED IN 2016 FOR CANCELLATION / PERMANENT DISCONNECTION AND WHETHER CLAUSES 4.36 AND 4.38 OBLIGED THE LICENSEE TO DISCONNECT AND REMOVE THE METER

Parties joined issue on whether any such application existed; the Court moulded a special settlement instead of deciding the Code duty. ¶ 3-5, 7

NOT DECIDED — WHETHER S.56 OF THE ELECTRICITY ACT, 2003 BARRED RECOVERY OF BILLS MORE THAN TWO YEARS OLD

Raised in the order dated 6.6.2024; not decided in the final order of 14.05.2026.

NOT DECIDED — WHETHER ELECTRICITY WAS CONSUMED AFTER 2016 AND WHETHER A RAID FINDING AN INTACT CONNECTION AND METER ESTABLISHED LIABILITY FROM OCTOBER 2016 TO 7 APRIL 2024

Licensee's case on the raid and continued consumption was recorded; not adjudicated. ¶ 5, 7

NOT DECIDED — VALIDITY ON THE MERITS OF THE REPRESENTATION-REJECTION ORDER DATED 2 APRIL 2024 AND OF THE BILL-CUM-NOTICE DATED 18 MARCH 2023

Neither was quashed; the petition was disposed of by the special deposit-and-NDC direction. ¶ 2, 7-8

Ghanshyam v. State of U.P. Thru. Prin. Secy. Energy Deptt. & 3 Others

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 19 May 2026 · Writ - C No. 4619 of 2026 · **Writ petition allowed; Executive Engineer's demand dated 28.5.2025 quashed.**

HEADNOTE

Clause 4.14(g) of the U.P. Electricity Supply Code, 2005 — paid final bill after consumer-initiated termination. Where the consumer produces a receipt stamped 'P.D. Final Amount' for the sum later recited in the licensee's own demand, and the licensee admits that records of the connection are not available, that receipt is treated as authentic proof that the agreement was terminated and the FINAL BILL (no-dues) paid. Once permanent disconnection has been approved and that bill paid, the licensee has no occasion to issue further bills or to reassess the consumer; missing departmental records cannot be used to subject him to illegal billing. A disconnection application is not to be rejected for want of the prescribed format or the last receipt: it must be processed forthwith, with disconnection, a reading and a final bill within 30 days. The Executive Engineer's demand of Rs 1,66,916 dated 28.5.2025 is quashed.

FACTUAL SUMMARY

Ghanshyam had electricity connections at his residence in Village Bidhar Khas, Bhidur, Tehsil Tanda, District Ambedkar Nagar. After constructing a new house he applied for disconnection of the old premises, deposited the communicated final amount of Rs 1,696, and received a receipt dated 10 November 2016 bearing the endorsement '702/2326/014048 P.D. Final Amount'. No bills issued from 2016 until 2024. An RTI request to the Executive Engineer, Madhyanchal Vidyut Vitran Nigam Ltd., Tanda, was answered that the subdivision had changed to Alapur and that records of the connection were not available. By order dated 28 May 2025 the Executive Engineer, Vidyut Vitran Khand, Allapur, nevertheless directed him to deposit Rs 1,66,916 against connection No. 0087104000. He sought certiorari to quash that order. The distribution company opposed the writ on instructions, pointing to Clauses 4.38 and 4.14(g) of the Electricity Supply Code, 2005.

REUSABLE CONSTRUCTIONS

1. Once permanent disconnection is approved and the Clause 4.14(g) final bill paid, the receipt stamped FINAL BILL is treated as a no-dues certificate; the licensee has no occasion to issue further bills or reassess, and missing departmental records cannot revive billing. ¶ 9-11, 15
2. A disconnection application is not to be rejected for want of the prescribed format or the last receipt; it must be processed forthwith, with disconnection, a reading and a final bill within 30 days. ¶ 12-14

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.14(g)

paid final bill after consumer-initiated termination bars further demand

QUESTION

Once a consumer has paid a final bill stamped for permanent disconnection under Clause 4.14(g), may the licensee later demand a further amount on that connection, including where its own records of the connection are missing?

HOLDING

No. The 10.11.2016 receipt for Rs 1,696 stamped 'P.D. Final Amount' was not denied; a departmental letter of 9.5.2024 said records of the connection were unavailable, so the Court saw no reason to doubt the receipt. The same Rs 1,696 is recited in the 28.5.2025 demand, identifying the same connection. Clause 4.14(g) requires, after 30 days' notice, a reading, disconnection, removal of meter and cable, and a final bill including arrears; payment yields a receipt stamped FINAL BILL, treated as a no-dues certificate. Once permanent disconnection is approved and that bill paid, there is no occasion to issue further bills or to assess the consumer again for an unusual amount. Missing records cannot be used to subject him to illegal billing. The demand of Rs 1,66,916 is quashed. ¶ 7-11, 15

QUALIFIER

Identity of the 2016 PD account (702/2326/014048) with demand connection No. 0087104000 rested on the shared Rs 1,696 figure appearing in both documents.

FLAG Licensee also cited Clause 4.38 (permanent disconnection); the Court reproduced and applied only Clause 4.14(g).

HOLDING-UNIT · UP-2005::4.14(g)

prescribed format or last receipt not a ground to refuse processing a disconnection application

QUESTION

May the licensee refuse to process a consumer's application for disconnection because it is not in the prescribed format or does not annex the last bill or receipt?

HOLDING

No. There is no justification for insisting on a prescribed-format application annexing the last receipt when those materials are with the department itself. Any disconnection application is to be processed forthwith: supply disconnected and a final bill on the last reading. Mere non-use of the prescribed format, or failure to annex the bill or receipt, is not a ground to reject or not process the application. The department is under a duty to frame consumer-friendly rules. The application itself indicates cessation of the consumer-supplier relationship; under paragraph 4.14, supply is to be disconnected and a reading taken within 30 days so that a final bill can be submitted, which the consumer must clear or dispute under the Code. ¶ 12-14

FLAG Observations made while quashing a post-PD demand, not on a pending disconnection application. The prescribed format referred to is Annexure 4.7, quoted in Clause 4.14(g).

PRINCIPLE TAGS

clause-4.14g-paid-final-bill-bars-further-demand A 2016 receipt stamped 'P.D. Final Amount' for Rs 1,696, undenied and consistent with the licensee's admission that records are missing, is treated as Clause 4.14(g) termination and no-dues. A 2025 demand of Rs 1,66,916 on that connection is quashed; missing records cannot revive billing. ¶ 9-11, 15

code-liberally-construed-for-consumer A disconnection application is not to be rejected for want of the prescribed format (Annexure 4.7) or the last receipt. The Code's 30-day Clause 4.14 process is to be applied in a consumer-friendly way; the application itself marks cessation of the supply relationship. ¶ 12-14

licensee-demand-on-paid-bills-requires-shown-provision After due discharge of the Clause 4.14(g) final bill, a later unusual demand is quashed. The licensee showed no provision authorising reassessment of a permanently disconnected, no-dues connection, and missing records were not a substitute. ¶ 9-11

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CONSTRUCTION OF CLAUSE 4.38 (PERMANENT DISCONNECTION)

Cited by the licensee as the provision governing permanent disconnection; the Court reproduced and decided the case under Clause 4.14(g) only. ¶ 6

NOT DECIDED — COMPUTATION OR LEGAL BASIS OF THE RS 1,66,916 DEMAND

The order of 28.5.2025 was quashed in full as unauthorized post-PD billing; the Court did not examine how the figure was assessed. ¶ 10-11, 15